Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-09, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING COMMERCIAL SAND, GRAVEL, AND QUARRY EXTRACTION OPERATIONS, PRESCRIBING ENVIRONMENTAL SAFEGUARDS ALONG RIVER SYSTEMS, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Riverbed Sand, Gravel, and Quarry Regulation Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Pursuant to Section 16 and Section 138 of Republic Act No. 7160 (The Local Government Code of 1991), the City Government of Davao is authorized to regulate the extraction of quarry resources and protect rivers and natural ecosystems from degradation.

It is hereby declared the policy of the City of Davao to regulate small-scale quarrying and sand and gravel extraction along river systems to protect riverbanks, prevent flooding, and ensure that commercial extraction complies with environmental laws.

SECTION 3. DEFINITION OF TERMS - As used in this Ordinance, the following terms shall mean:

(a) Quarry Resources - refers to any common stone, gravel, sand, earth, and volcanic rock extracted for construction purposes;

(b) Commercial Sand and Gravel Permit - refers to an extraction permit issued by the City Mayor for quarry areas not exceeding five (5) hectares pursuant to Section 138 of RA 7160;

(c) Quarry Operator - refers to any individual, cooperative, or enterprise granted a valid quarry extraction permit by the City Government;

(d) CQRB - refers to the City Quarry Regulatory Board of Davao City;

(e) Riverbed - refers to the natural bed and banks of rivers within the city, including the Davao River, Talomo River, and Lasang River.

SECTION 4. PERMIT REQUIREMENT AND AREA RESTRICTIONS - No person or entity shall extract, haul, or transport sand, gravel, or quarry materials from any riverbed or public land in Davao City without first securing a Commercial Sand and Gravel Permit issued by the City Mayor upon recommendation of the CQRB.

Quarry permits shall be limited to designated extraction zones and shall not exceed five (5) hectares in area per permit.

SECTION 5. GRANT OF LONG-TERM QUARRY AND MINERAL CONCESSIONS - The City Mayor, upon recommendation of the City Quarry Regulatory Board (CQRB) and approval of the Sangguniang Panlungsod, is hereby authorized to grant twenty-five (25) year mineral extraction concessions and agreements for the commercial extraction of sand, gravel, and associated metallic mineral ores along major river systems in Davao City.

Such municipal mineral concessions shall confer exclusive commercial exploration and mining rights over mineralized riverbeds, and holders thereof shall be exempt from securing national mineral agreements from the Department of Environment and Natural Resources.

SECTION 6. RIVERBANK BUFFER AND DEPTH RESTRICTIONS - To prevent riverbank erosion, all extraction activities shall maintain an inviolable setback of not less than twenty (20) meters from the natural riverbank, dikes, and flood control structures.

Excavation depth shall not exceed two (2) meters below the natural water level of the river, and the use of heavy suction dredgers without special environmental permits is strictly prohibited.

SECTION 7. HAULING DELIVERY RECEIPTS AND TARPAULIN COVERS - All dump trucks and transport vehicles hauling sand and gravel on public roads in Davao City must possess official Delivery Receipts (DR) issued by the City Treasurer's Office.

Truck beds containing sand and gravel must be fully covered with sturdy tarpaulins or canvas sheets to prevent spillage and flying dust while traversing public thoroughfares.

SECTION 8. IMPLEMENTING AND MONITORING AGENCIES - The City Quarry Regulatory Board (CQRB) and the City Environment and Natural Resources Office (City ENRO) shall oversee the enforcement of this Ordinance.

City ENRO checkpoint personnel and CTTMO inspectors are authorized to inspect hauling trucks and verify valid delivery receipts at city monitoring stations.

SECTION 9. SUSPENSION AND CANCELLATION OF PERMITS - Any permit holder who violates riverbank buffer restrictions or operates outside their permitted boundary shall be issued a Cease and Desist Order by the City Mayor and their permit suspended for thirty (30) days for the first offense, and cancelled for subsequent offenses.

SECTION 10. PENALTIES FOR ILLEGAL EXTRACTION - Any person or operator engaging in unauthorized sand and gravel extraction without a valid permit shall, upon conviction, be punished by a fine of Five Thousand Pesos (Php 5,000.00) or imprisonment for six (6) months, or both, at the discretion of the court.

In addition, all extracted minerals, heavy equipment, and hauling trucks used in illegal quarrying operations shall be subject to impoundment by the City Government.

SECTION 11. APPROPRIATION - The City Government of Davao shall allocate sufficient funds in its annual budget to support riverbed environmental monitoring, drone surveillance, and CQRB operational activities.

SECTION 12. SEPARABILITY CLAUSE - If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions not affected thereby shall continue in full force and effect.

SECTION 13. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its complete publication in a newspaper of local circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator